

THE MOST IMPORTANT BOOK IN THE HISTORY OF COMMON LAW

BLACKSTONE'S *COMMENTARIES* (1765–1769)



IN CONTEXT

FOCUS

Common law

BEFORE

1166 King Henry II issues the Assize of Clarendon, a series of legal reforms that lay the basis of English common law.

1215 The seminal document of English common law, Magna Carta, is signed.

1689 The English Bill of Rights is passed by Parliament.

AFTER

1771–1772 An American edition of Blackstone's *Commentaries* is published in Philadelphia to great interest.

1787 The US Constitution—the founding legal document of the United States—is signed.

1871 *A Selection of Cases on the Law of Contracts*, by American jurist Christopher Columbus Langdell, supplants the *Commentaries* as the key US law textbook.

William Blackstone's *Commentaries on the Laws of England*, a systematic work describing every aspect of English common law, was pivotal in fostering a wider understanding of law. Blackstone began to lecture on common law at the University of Oxford in 1753, the first time this had occurred in Britain. His lectures were popular due to his clear explanations of complex legal issues. Between 1765 and 1769, he published these lectures in four volumes: *Of the Rights of Persons*; *Of the Rights of Things*; *Of Private Wrongs*; and *Of Public Wrongs*.

Blackstone's book made English common law, with its huge body of statutes and judgments, much more accessible. It was used well into the 19th century as a foundation text at law schools in Britain, the US, and throughout the Commonwealth.

Revolutionary impact

The book's portable format was especially useful in America, where frontier lawyers often lacked the



Sir William Blackstone (1723–1780), an English barrister, judge, and politician, gave practical, logical, and accessible guidance to English common law.

resources to check legal precedents. Now they could refer to Blackstone's succinct *Commentaries*. His promotion of the idea that the law should protect people, their property, and their liberty resonated in revolutionary America and in the drafting of the US Constitution. ■

See also: Magna Carta 66–71 ■ The Glorious Revolution and the English Bill of Rights 102–103 ■ The US Constitution and Bill of Rights 110–117